

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

JUSTICE YAHYA AFRIDI, CJ
JUSTICE SHAHID BILAL HASSAN

C.P.L.A. No. 209, 210, 211, 212, 324 & 325/2026

[Against order dated 22.12.2025 passed in W.P.Nos.2116/2022, 2117/2022, 2118/2022, 2119/2022, 2114/2022 and 2115/2022, respectively, by Lahore High Court, Rawalpindi Bench, Rawalpindi]

1. Faisal Paracha
(In C.P.L.A. No. 324 & 325/2026)

2. Khawar Yasin Paracha **...Petitioner(s)**
(In C.P.L.A. No. 209, 210, 211, 212/2026)

Versus

1. Additional District Judge etc.
(In C.P.L.A. No. 324 & 325/2026)

2. Ehtasham Sheikh & others **...Respondent(s)**
(In C.P.L.A. No. 209, 210, 211, 212/2026)

For the Petitioner(s) : Mr. Muhammad Ahsan Bhoon, ASC
(in CPs 209-212 of 2026)

Sh. Zamir Hussain, Sr. ASC
(in CPs 324, 325 of 2026)

For the Respondent(s) : Mr. Khalid Mahmood, ASC
(in all cases)

Date of Hearing : 20.02.2026

JUDGEMENT

SHAHID BILAL HASSAN-J: These connected petitions are being disposed of through this common judgment as they arise out of ejectment proceedings concerning shops situated in Gul Noor Plaza, Murree Road, Rawalpindi, and involve substantially identical questions of law and fact. Since the factual background and the legal issues raised in the petitions are interlinked, it is convenient and appropriate to address them together.

2. At the outset, it may be observed that although the petitions arise from the same set of ejectment proceedings, they involve two slightly distinct factual constructions. The first set of petitions, being

C.P.L.A. Nos. 324 and 325 of 2026, pertains to the challenge raised by the petitioners regarding the alleged partition of the property and the identity of the landlord. The second set, being C.P.L.A. Nos. 209, 210, 211 and 212 of 2026, raises an additional plea relating to the alleged acquisition of ownership rights during the pendency of the proceedings. For clarity of analysis, the two sets of petitions shall be dealt with separately.

3. The controversy originates from ejectment petitions instituted by the respondents under Section 15 of the Punjab Rented Premises Act, 2009 in respect of certain commercial shops located in Gul Noor Plaza, Murree Road, Rawalpindi. Upon being served, the petitioners sought leave to contest the ejectment petitions on the plea that although the tenancy between the parties was initially oral, the same was subsequently reduced into writing through an agreement dated 20.01.2009 whereby the premises were purportedly let out for a period of thirty-three years against payment of '*Pagri*'. Leave to contest was granted by the learned Rent Controller subject to deposit of tentative rent.

4. Upon conclusion of the evidentiary proceedings, the learned Rent Controller, after examining the oral and documentary material available on the record, held that the alleged lease deed dated 20.01.2009 could not be relied upon as the same was admittedly unregistered and purported to create rights in immovable property for a term exceeding one year. Consequently, the tenancy was treated as a month-to-month tenancy under the law and, having been validly terminated, the ejectment petitions were accepted.

5. The petitioners assailed the said orders through appeals before the learned Appellate Court; however, the appeals were dismissed vide judgment dated 25.06.2022 after an independent re-appraisal of the record. The petitioners there-after invoked the constitutional jurisdiction of the learned High Court, but the constitutional petitions met the same fate through a consolidated judgment dated 22.12.2025.

6. Learned counsel for the parties have been heard at length and the record has been carefully examined with their able assistance.

C.P.L.A. No.324 & 325/2026

7. Before this Court, the principal submission advanced by the learned Counsel for the petitioners is that Gul Noor Plaza had allegedly been partitioned amongst the legal heirs of the original owner; that different co-owners were receiving rent from different tenants; and that in the petitioners' case, the landlord was someone other than the ejectment petitioner, thereby rendering the ejectment proceedings not maintainable. It is further contended that the High Court did not adequately address the controversy and the matter warrants remand.

8. We are unable to persuade ourselves to accept the aforesaid contention. The entire edifice of the petitioner's arguments before this Court rests upon factual assertions concerning the alleged partition of the property and the identity of the landlord. These questions are essentially factual in nature and necessarily required to be specifically pleaded, made subject of issues, and established through evidence before the competent forum.

9. A careful perusal of the record reveals that no such foundational plea challenging the locus standi of the ejectment petitioner, on the basis now sought to be advanced before this Court, was raised before the fora below in the manner presently urged. Neither any issue was framed on this proposition nor was any evidence led specifically to establish the factual premise now being pressed into service.

10. Additionally, it is by now a well-settled principle of law that a party cannot be permitted to raise, for the first time in proceedings seeking leave to appeal, a factual controversy and new plea which would require determination through evidence. The jurisdiction of this Court under Article 185(3) of the Constitution is not intended to re-open factual disputes which were neither pleaded nor adjudicated upon by the courts below. A litigant who has failed to lay the necessary factual foundation before the competent forums cannot be

permitted to restructure his case at the stage of leave to appeal, by raising a new plea for the first time¹.

11. The principal thrust of the learned counsel's submissions was that the matter ought to be remanded on the ground that the learned High Court did not adequately deal with the controversy. We find ourselves unable to agree. It is well established that remand is not to be ordered as a matter of routine². The power of remand is a corrective jurisdiction to be exercised carefully where a material issue has remained undecided or where a party has been denied a fair opportunity to present its case. It cannot be employed as a device to prolong litigation or to afford a litigant a second opportunity to fill lacunae in his case.

12. In the present matter, the record clearly reflects that the learned Rent Controller framed the relevant issues, recorded oral as well as documentary evidence, and returned findings after a comprehensive appraisal of the material placed before it. The learned Appellate Court independently examined the matter and concurred with those findings, while the learned High Court, exercising

¹ Pirzada Noor-Ul-Basar v. Mst. Pakistan Bibi and others (2023 SCMR 1072), Wali Jan v. Government of KPK (2022 PLC (C.S.) 336), WAPDA through Chairman and others v. Alam Sher and others (2023 SCMR 981), Najaf Iqbal v. Shahzad Rafique (2020 SCMR 1621), Sarhad Development Authority N.W.F.P. (Now KPK) through COO/CEO (Officio) and others v. Nawab Ali Khan and others (2020 SCMR 265), Muhammad Rashid Bhatti v. The Director General FIA Headquarters, Islamabad and others (2018 SCMR 1995)/(2019 PLC (C.S.) 126), Water and Power Development Authority (WAPDA) through Chairman and others v. Dr. Altaf-Ur-Rehman (2012 PLC (C.S.) 1261)/(2011 SCMR 1070), Muhammad Saleem v. Muhammad Azan and another (2011 SCMR 474), District Education Officer, Kasur and others v. Miss Jamil Akhtar (2008 SCMR 754), Board of Intermediate and Secondary Education and others v. Khalil Ahmad and others (2008 PLC (C.S.) 270), Nazir Ahmad and others v. Rehmat Ali and others (2006 SCMR 750), Ghulam Ahmad Hussain and others v. Faisal Farooq and others (2004 SCMR 1790), Ilam-Ud-Din through Legal Heirs v. Syed Sarfraz Hussain through Legal Heirs (2001 SCMR 1225), Mst. Roshan Akhtar v. Muhammad Boota and 4 others (2000 SCMR 1845), Capt. (Retd.) Muhammad Naseem Hijazi v. Province of Punjab through Secretary, Housing and Physical Planning and 2 others (2000 SCMR 1720), Amiran Bibi and others v. Muhammad Ramzan and others (1999 SCMR 1334), Chairman Area Electricity Board, WAPDA, Peshawar and 3 others v. Jehangir Khan (1999 SCMR 841)/(1999 PLC (CS) 423), Sher Khan v. Baz Khan and others (1999 SCMR 2338), General Board of Revenue, Islamabad through Collector of Customs, Sialkot Dry Port, Sumerial, District Sialkot and others v. Messrs Raja Industries (Pvt.) Ltd. through General Manager and 3 others (1998 SCMR 307), Munir Bibi v. Khursheed Begum (1996 SCMR 789), Roshan and another v. The State and another (1995 SCMR 418), Rauf Ahmad v. Mst. Walayat Begum (PLD 1995 Supreme Court 639), Mushtaq alias Shaman v. The State (PLD 1995 Supreme Court 46), Muhammad Murad v. The State (1990 SCMR 345) and Akbar Hussain v. M.M.K.A. Zai (1968 SCMR 386)

² Rozi Khan and others v. Nasir and others (1997 SCMR 1849) and Chairman, WAPDA, Lahore and another v. Gulbat Khan (1996 SCMR 230)

constitutional jurisdiction, declined interference after considering the submissions raised before it.

13. No jurisdictional defect, misreading of evidence, or non-reading of material evidence has been demonstrated before us which would justify interference with the concurrent findings of the courts below. The determination that the alleged unregistered lease deed could not create a long-term tenancy and that the tenancy was therefore month-to-month is in consonance with settled principles of law and does not call for reconsideration at this stage.

14. Consequently, these petitions are found to be devoid of any merit and are dismissed. Leave refused. No order as to costs.

C.P.L.A. No. 209, 210, 211, 212/2026

15. Learned counsel for the petitioners submitted that during the pendency of the proceedings before the learned High Court, the petitioners had allegedly purchased certain portions of the property through registered sale deeds dated 05.12.2022 and 13.01.2023, thereby acquiring co-ownership rights in the property. It was contended that, in view of such subsequent acquisition, the matter ought to be remanded for recording evidence on the question of title. Learned counsel further argued that the demised premises had been extended from time to time through acquisition of adjoining portions from co-owners or third parties, and that this aspect had not been properly appreciated by the courts below.

16. A careful scrutiny of the record, however, reveals that the plea regarding acquisition of ownership through the aforesaid sale deeds was never part of the original defence before the learned Rent Controller. Likewise, the assertion that the demised premises had been extended through acquisition of adjoining portions from co-owners or third parties was not pleaded in the written statement in a manner that would form part of the original controversy between the parties.

17. It is a cardinal principle of civil jurisprudence that parties are bound by their pleadings. No amount of evidence can be looked into in support of a plea not specifically raised. A litigant cannot be

permitted to improve or reconstruct his case at a later stage by introducing facts that were neither pleaded, nor made subject of issue, nor tested through evidence before the competent forum³.

18. Even otherwise, as already held by a five-member bench of this Court⁴ and reaffirmed in subsequent jurisprudence, the position in law is unambiguous: a tenant who has entered into possession under a tenancy cannot, during its subsistence, dispute the title of the landlord at its inception. The doctrine of estoppel embedded under Article 115 of the Qanun-e-Shahadat Order, 1984⁵ and tenancy jurisprudence bars such a course. If, upon expiry of tenancy, a tenant sets up an independent title in himself, the lawful course is to vacate the premises and pursue appropriate remedies in a competent civil forum. Rent proceedings cannot be converted into a forum for adjudication of complex title disputes⁶.

19. It may further be observed that reliance upon sale deeds executed in the years 2022 and 2023 to resist ejectment proceedings instituted as far back as 2018 does not commend itself to a prudent judicial mind. Rights, if any, allegedly acquired *pendente lite* cannot be employed as a ploy to defeat proceedings lawfully initiated years earlier, particularly where such rights were neither pleaded at inception nor integrated into the original defence.

³ Hafiz Qari Fateh through L.Rs. v. Ms. Urooj Fatima and others (2024 SCMR 1709), Muhammad Ghaffar (deceased) through LR and others v. Arif Muhammad (2023 SCMR 344), Zulfiqar and others v. Shahdat Khan (PLD 2007 Supreme Court 582) and Government of West Pakistan (Now Punjab) through Collector, Bahawalpur v. Hail Muhammad (PLD 1976 SC 469), Messrs Choudhary Brothers Ltd., Sialkot v. The Jaranwala Central Co-operative Bank Ltd., Jaranwala" (1968 SCMR 804), "Binyameen and 3 others v. Chaudhry Hakim and another" (1996 SCMR 336) and "Major (Retd.) Barkat Ali and others v. Qaim Din and others" (2006 SCMR 562).

⁴Nazir Ahmad v. Mst. Sardar Bibi and others (1989 SCMR 913)

⁵"**115. Estoppel of tenant and of licensee of person in possession:** No tenant of immovable property, or person claiming through such tenant, shall, during the continuance of the tenancy, be permitted to deny that the landlord of such tenant had, at the beginning of the tenancy, a title to such immovable property; and no person who came upon any immovable property by the license of the person in possession thereof shall be permitted to deny that such person had a title to such possession at the time when such license was given."

⁶ Mst. Seema Begum v. Muhammad Ishaq and others (PLD 2009 Supreme Court 45); Barkat Masih v. Manzoor Ahmad (deceased) through L.Rs. (2006 SCMR 1068); Ghulam Mustafa and others v. Mst. Muhammadi Begum and others (1991 SCMR 432); Muhammad Nazir v. Saeed Subhani (2002 SCMR 1540); Waheed Ullah v. Mst. Rehana Nasim and others (2004 SCMR 1568)

20. The attempt in the present case is plainly to transform rent jurisdiction into a title suit, an approach impermissible under the statutory scheme of the Punjab Rented Premises Act, 2009, which provides a summary and specialized mechanism for resolution of landlord-tenant disputes.

21. The principal emphasis of the learned counsel for the petitioner has been on remanding the matter back to the Rent Controller. It is contended that the matter be sent back for reconsideration in light of the plea relating to ownership. We are unable to accede to this submission.

22. In the present case, the record reflects that issues within the scope of rent jurisdiction were duly framed, oral and documentary evidence was recorded, and findings were returned upon proper appraisal of the material available. The Appellate Court independently re-examined the matter and concurred with those findings, and the High Court declined interference upon application of settled principles governing constitutional review. No procedural illegality, denial of fair opportunity, or jurisdictional defect has been demonstrated before us.

23. More importantly, it is an admitted position that the petitioners have already disputed the respondents' title through separate civil proceedings, which are presently pending before a competent civil court. The petitioners have, thus, availed themselves of the appropriate and efficacious remedy for adjudication of ownership rights. The question of title is, therefore, sub judice before the forum legally competent to determine it conclusively.

24. In such circumstances, remanding the matter to the Rent Controller for inquiry into title would be wholly misconceived. It is, by now, firmly settled, and has been reiterated in recent pronouncements of this Bench⁷ in line with consistent jurisprudence, that the Rent Controller exercising jurisdiction under the Punjab Rented Premises Act, 2009 cannot adjudicate complex questions of proprietary title. Rent proceedings are summary in character and confined to determining the existence of the landlord-

⁷ CPLA No.806-P of 2018 decided on 29.01.2026

tenant relationship and the statutory grounds of ejectment. Questions of ownership lie exclusively within the domain of the civil court.

25. Remand, therefore, would neither resolve the pending title dispute nor cure any defect in the rent proceedings. It would serve no legal purpose and would merely delay the culmination of litigation. In the absence of any jurisdictional infirmity or procedural irregularity, no ground is made out for adopting such a course. Learned counsel's reliance upon precedents concerning co-ownership disputes is misplaced.

26. Now advertent to the cases cited by the learned counsel for the petitioners, he has relied on Mst. Sanobar Sultan and others v. Obaidullah Khan and others (PLD 2009 SC 71) and Abdul Zahir v. Jaffar Khan (2010 SCMR 189) which relate to situations where the ownership of the very demised premises had undergone a clear and admitted change through alienation by co-owners, thereby directly affecting the landlord-tenant relationship itself. In the present case, no such alteration in ownership of the demised premises has been established. The property, for purposes of the tenancy in question, continues to vest in the legal heirs of the original owner. The alleged purchases relied upon by the petitioners pertain to adjoining portions and were never made part of the original defence before the Rent Controller. Those facts stand on an entirely different footing. Precedents apply where the factual foundation is analogous. Where the underlying facts materially differ, reliance upon such authorities does not carry the matter any further. The judgments cited are, therefore, clearly distinguishable and of no assistance to the petitioners.

27. The courts below have concurrently held that the tenancy between the parties stood established; that the plea of extended ownership or acquisition of title was neither pleaded nor proved; that no triable issue of title arose within the jurisdictional confines of rent proceedings; and that the ejectment petitions were maintainable and rightly decreed. These findings are rooted in proper appreciation of the record and faithful application of settled legal principles. No perversity, misreading or non-reading of material evidence, nor any

jurisdictional defect, has been demonstrated which would warrant interference by this Court.

28. The petitioners, in substance, seek to re-open factual controversies not forming part of their original pleadings and to secure a remand for questions of title already agitated before a competent civil forum. Such an approach is inconsistent with the statutory framework governing rent proceedings and falls outside the disciplined limits of appellate review. No miscarriage of justice has been shown. Consequently, no ground for interference is made out.

29. The crux of the discussion leads that these petitions are devoid of merits, therefore, are dismissed. Leave is refused.

CHIEF JUSTICE

JUDGE

Announced in open Court on _____.

JUDGE

Islamabad the
"Approved for Reporting"
M.A.Hassan